

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 9, 2026, AT 8:30 A.M.

8. S-CV-0056181 AMERICREDIT FINANCIAL SVS. v. FELKER, JEREMY

The writ of possession hearing is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0057858 HATAMI, JULIE v. HARTFORD, JOHN

Plaintiffs/Judgment Creditors' Application for Order for Sale of Dwelling, and Adjacent Vacant Lot

Plaintiffs/judgment creditors apply for an order for sale of dwelling and adjacent vacant lot. Code of Civil Procedure section 704.750 provides the timing requirements for such an application as follows

Promptly after a dwelling is levied upon (other than a dwelling described in subdivision (b) of Section 704.740), the levying officer shall serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of this section. Service shall be made personally or by mail. Within 20 days after service of the notice, the judgment creditor shall apply to the court for an order for sale of the dwelling and shall file a copy of the application with the levying officer. If the judgment creditor does not file the copy of the application for an order for sale of the dwelling within the allowed time, the levying officer shall release the dwelling.

(Code Civ. Proc., § 704.750, subd. (a).)

Here, there is insufficient evidence that the dwelling at issue was levied on, a levying officer served defendant/judgment debtor with notice of the levy, or plaintiffs/judgment creditors brought the application within 20 days of the notice of levy being served on the judgment debtor. Accordingly, plaintiffs/judgment creditors application is denied without prejudice.